

25CV03180 The Mission LLC vs The City of Santa Barbara

County: santa-barbara

Division: Civil Law & Motion

Department: 3 SB-Anacapa

Hearing date: 2026-09-02

Motion: Motion: Judgment on the Pleadings

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Tentative Ruling: The Mission LLC vs The City of Santa Barbara

Case Number

25CV03180

Case Type

Civil Law & Motion

Hearing Date / Time

Wed, 09/02/2026 - 10:00

Nature of Proceedings

Motion: Judgment on the Pleadings

Tentative Ruling

Petitioner by Richard Jacobs

Respondent City by John Doimas, Sarah Knecht, Eric Phillips; Caitlin R. Eliason; Tava Marie Ostrenger; Delaney Satz

RULING

In this matter, Plaintiff, The Mission LLC, seeks relief based upon applications for development of property located at 505 East Los Olivos Street. Plaintiff's first amended petition (FAP), filed on November 18, 2026. The petition asserted five causes of action: (1) writ of mandate (failure to process application as complete without payment of certain fees); (2) writ of mandate (imposing improper requirements on application); (3) declaratory and injunctive relief (failure to process applications); (4) declaratory and injunctive relief (imposing improper requirement on application); and (5) writ of mandate (compliance with

former Gov. Code, § 65589.5, subd. (h)(6)(D) [now subd. (h)(6)(E)]). The FAP identifies that the second and fourth causes of action became moot by the time of the filing of the FAP.

The Court determined the petition for writ of mandate aspect of the FAP on April 22, 2026. The Court denied the petitions for writs sought in the first and fifth causes of action. The petitioner has conceded that the fourth cause of action is also moot. The only cause of action remaining undecided in the FAP is the third cause of action for declaratory relief. At the conclusion of the April 22 ruling, the Court invited this motion for judgment on the pleadings based upon the City's contention that the disposition of the writ petitions resolved the third cause of action as a matter of law. Plaintiff disagrees and seeks a trial on the third cause of action.

This area is nuanced and there may be issues remaining for trial when reviewed carefully. This Court wants to give the issues the attention they deserve, and a lot rides on the decision.

This Court's Law and Motion Calendar is very impacted.

The hearing will be continued to 11/4/26 on the Court's own motion.

This Court apologizes for the inconvenience.

Judges

Judge Thomas Anderle

Dept. 3 SB-Anacapa

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